

concern that can affect many people is generally deemed to involve an issue of public interest for purposes of the anti-SLAPP statute.” (Wong v. Jing (2010) 189 Cal.App.4th 1354, 1366) When determining whether the issue is a matter of public interest, the court construes the statute broadly. (Nygrd, Inc. v. Uusi-Kerttula (2008) 159 Cal.App.4th 1027, 1039)

Here, the Google review was a warning by Stern to the public not to use Schutzman as an attorney. Selecting an attorney is not always an easy task. Providing this consumer protection information affects a large number of persons and “generally is viewed as information concerning a matter of public interest.” (Wilbanks v. Wolk (2004) 121 Cal. App. 4th 883, 898.) Indeed, Plaintiff’s complaint alleges that “[t]he Google review was seen and read . . . by thousands of potential clients.” Complaint at ¶ 13.

Construing “public interest” broadly, the Court finds the Google review addresses a matter of public interest and that Stern has met his burden under prong one.

Once Defendant has met her burden of showing the causes of action arise from protected activity, Plaintiffs have the burden of establishing a probability of success on the merits with respect to those claims. (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 73)

Here, the Google Review stated that Schutzman was unprofessional, unreliable and unresponsive. “The ultimate question is whether a reasonable trier of fact could conclude that the published statements imply a provably false factual assertion. (Citation) As we found in Weller v. American Broadcasting Companies, Inc. (1991) 232 Cal.App.3d 991, the court ‘must determine whether the statements that form the basis of a defamation claim: (1) expressly or impliedly assert a fact that is susceptible to being proved false; and (2) whether the language and tenor is such that it cannot ‘reasonably [be] interpreted as stating actual facts.’ ” (Citation)” (Wilbanks v. Wolk (2004) 121 Cal. App. 4th 883, 902)

In the opposition, plaintiff has failed to show the three statements (unprofessional, unreliable and unresponsive) are provably false. The statements express Stern’s opinion. Stern expresses his opinion in the context of those attorneys he has “dealt with.” It is not uncommon for people to have different expectations for their attorneys. For example, a person might consider an attorney who takes five days to respond to an email to be unresponsive and unreliable and therefore unprofessional. On the other hand, a different person might find such to be a prompt and expected timeframe for response by a busy lawyer.

Schutzman argues that “Stern received all the remedy he could possibly receive without alleging alter ego or doing extensive discovery.” (Opp. at 6:15-16) However, Stern did not say in the review he did not get the best available result. Instead, Stern expressed his opinion that his interactions with Schutzman were unprofessional, unreliable and unresponsive.

		Accordingly, the Court finds Schutzman has failed to meet his burden to show the statements were provably false as opposed to Stern's mere opinions. Defendant's request for judicial notice is GRANTED, as to the existence of the documents. (Evid. Code §452(d).) Plaintiff's objection to paragraph 11 of Stern's declaration is SUSTAINED. The remainder of plaintiff's objections are OVERRULED. For the foregoing reasons, the motion is GRANTED. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Defendant Stern shall give notice of this ruling.
8	FFC Mortgage Corp. v. Consumer Tax Advocate, LLC.	Before the Court is a demurrer by Consumer Tax Advocate LLC (CTA), Garrett Holdridge and Robert Mullen to plaintiff FFC Mortgage Corp.'s (FFC) second amended complaint (SAC). The demurrer is OVERRULED as to CTA and Holdridge and SUSTAINED as to Mullen, without leave to amend, as set forth herein. The role of a demurrer is "to test the legal sufficiency of a complaint." (<i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994, citations omitted.) A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (<i>See Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) <u>Intentional Misrepresentation – 2nd cause of action as to CTA and Holdridge</u> The elements of a fraud cause of action are: "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage. [Citation.]" (<i>Small v. Fritz Companies, Inc.</i> (2003) 30 Cal.4th 167, 173, internal quotation marks omitted.) "Fraud allegations 'involve a serious attack on character' and therefore are pleaded with specificity. [Citation.] General and conclusory allegations are insufficient. [Citation.] The particularity requirement demands that a plaintiff plead facts which show how, when, where, to whom, and by what means the representations were tendered. [Citation.]" (<i>Cansino v. Bank of Am.</i> (2014) 224 Cal.App.4th 1462, 1469.)